DV-150 Mandatory Findings for Child Custody and Visitation Order

Clerk stamps date here when form is filed.

1 Protected Person

(name): _____

2 Restrained Person

(name): _____

3 Hearing

a. The hearing was on *(date):* _____

with *(name of judicial officer):* _____

Fill in court name and street address:

Superior Court of California, County of

b. These people attended the hearing *(check all that apply):*

- ☐ The person in 1
- ☐ The lawyer for the person in 1
  (Lawyer's name): _____
- ☐ The person in 2
- ☐ The lawyer for the person in 2
  (Lawyer's name): _____

Court fills in case number when form is filed.

Case Number:

4 ☐ The Restrained Person Is Granted Sole Custody, Joint Custody, or Unsupervised Visits

(Mandatory findings under Family Code section 3011: The court must complete this item when allegations of abuse have been made against the restrained person and the court grants the restrained person sole or joint legal or physical custody, or unsupervised visits.)

a. For *(check one):*

- ☐ The children listed on form DV-140, item 3
- ☐ Only the children listed here *(names of children):* _____

The court finds that the custody and visitation (parenting time) order is in the best interests of the children; is specific as to time, day, place, and manner of transfer of the children; and protects their safety and the safety of the parties.

b. Court's reasons for granting sole or joint physical or legal custody, or unsupervised visits:

_____

_____

_____

_____

_____

_____

_____

This is a Court Order.

5 ☐ The Restrained Person Is Granted Sole or Joint Custody and Has Committed Domestic Violence in the Last Five Years

(Mandatory findings under Family Code section 3044: The court must complete this item if the restrained person has committed domestic violence in the last five years and the court has granted sole or joint legal or physical custody to the restrained person.)

a. The restrained person is granted *(check all that apply):*
   - ☐ Sole or joint legal custody
   - ☐ Sole or joint physical custody

b. For *(check one):*
   - ☐ The children listed on form DV-140, item 3
   - ☐ Only the children listed here *(names of children):* _____

   The court finds that the custody order is in the best interests of the children. In deciding the best interests of the children, the court has **not** used the preference for frequent and continuing contact with both parents.

c. Court's reasons for granting sole or joint physical or legal custody:

5 d. The court has balanced all required factors:

(1) The restrained person has successfully completed a batterer intervention program that meets the requirements under Penal Code section 1203.097(c).

☐ Yes ☐ No

(Explain, as needed):

(2) The restrained person has completed a program for alcohol or drug abuse counseling.

☐ Yes ☐ No ☐ Does not apply. The court decided counseling was not appropriate.

(Explain, as needed):

(3) The restrained person has completed a parenting class.

☐ Yes ☐ No ☐ Does not apply. The court decided a parenting class was not appropriate.

(Explain, as needed):

(4) The restrained person is on probation or parole and has complied with all the terms and conditions.

☐ Yes ☐ No ☐ Does not apply. The restrained person is not on probation or parole.

(Explain, as needed):

(5) The restrained person has complied with (followed) all restraining and protective orders.

☐ Yes ☐ No

(Explain, as needed):

This is a Court Order.

5 d. (6) The restrained person has not committed additional acts of domestic violence.

☐ Yes ☐ No

(Explain, as needed):

(7) The court has found that the restrained person has one or more firearms or ammunition. The restrained person has relinquished all of these items and shown proof of relinquishment to the court.

☐ Yes ☐ No ☐ Does not apply

(Explain, as needed):

(8) Additional reasons, if any:

6 ☐ Court Has Granted In-Person Visits for Restrained Person

(Mandatory findings under Family Code section 3100: The court must complete this item if the court finds that the protected person is staying in a confidential location due to domestic violence or fear of domestic violence, and the court is granting in-person visits to the restrained person.)

a. The court finds that the protected person is staying in a confidential location due to domestic violence or fear of domestic violence.

b. For *(check one):*

☐ The children listed on form DV-140, item 3

☐ Only the children listed here *(names of children):* _____

The court finds that in-person visits with the restrained person are in the best interests of the children. The court's order for custody and visitation is designed to keep the location of the protected person confidential, and will protect all persons staying at the confidential location.

This is a Court Order.

6 c. In granting in-person visits, the court has considered the following required factors:

(1) Whether the restrained person has access to firearms or ammunition.

In considering this factor, the court found that the restrained person *(check one):*

☐ Does not have access to firearms or ammunition
☐ Does have access to firearms or ammunition
☐ Other: _____

(2) Whether the restrained person has complied with (followed) all restraining and protective orders.

In considering this factor, the court found that the restrained person *(check one):*

☐ Has complied with all restraining and protective orders
☐ Has not complied with all restraining and protective orders
☐ Other: _____

(3) Information provided under Family Code section 3011.

(4) Information provided under Family Code section 6306 (background check).

(5) The potential for revealing a confidential location.

(6) Additional information or reasons for court's decision, if any:

_____
_____
_____
_____

7 ☐ **Other Findings** *(if any):*

_____
_____
_____

Judge's Signature

Date: _____

_____
Judge or Judicial Officer

This is a Court Order.

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